# Democratic Rights

## The big idea

Elections and institutions are not enough to make a democracy. Citizens must have **rights**: reasonable claims of persons, recognised by society and sanctioned by law. Rights protect us from the government and from each other, and the courts make sure they are respected.

## Life without rights

**1. Prison in Guantanamo Bay:** About **600 people** were secretly picked up by US forces from around the world and put in a prison in **Guantanamo Bay**, an area near **Cuba** controlled by the American Navy. The US government said they were enemies linked to the 9/11 attack in New York (2001). Their families were not informed; they were not produced before a magistrate; US courts could not hear their case. **Amnesty International**, an international human rights organisation, reported that prisoners were being tortured. The **UN Secretary General** said the prison should be closed. The US government refused.

**2. Citizens' rights in Saudi Arabia:** The country is ruled by a **hereditary king**; people have no role in electing or changing rulers. The king selects the legislature and executive and appoints judges. Citizens cannot form political parties; there is no freedom of religion for non-Muslims; women are subjected to many public restrictions (they got the vote in local elections only in 2015).

**3. Ethnic massacre in Kosovo:** Kosovo was a province of **Yugoslavia** with an ethnic **Albanian** majority. **Slobodan Milosevic**, a Serb nationalist leader, came to power through elections, and his government targeted Kosovo Albanians; thousands were massacred. In 1999 several countries intervened; Milosevic

later lost power and was tried by an **International Court of Justice** for crimes against humanity.

**WHAT ARE RIGHTS?**

A **right** is a claim of a person over other fellow beings, over society and over the government. Claims must be **reasonable**, **recognised by society** and **sanctioned by law**. Rights are needed in a democracy because: every citizen must be able to vote and contest; they protect minorities from oppression by the majority; they act as a guarantee when things go wrong, so the majority cannot take them away.

## Rights in the Indian Constitution

The Constitution lists **Fundamental Rights**, which are a basic feature of the Constitution. They are **six**:

### 1. Right to Equality (Articles 14–18)

- The government shall not deny any person **equality before the law** or **equal protection of the laws** (**rule of law**: no person is above the law).
- No discrimination on grounds of religion, caste, ethnicity, sex or place of birth in access to public places like shops, restaurants, hotels, wells and bathing ghats.
- **Equality of opportunity** in public employment; reservations for SC, ST and OBC are not a violation but a way to ensure real equality.
- **Untouchability** is abolished in any form and its practice is a punishable offence.
- Abolition of titles (except military and academic distinctions).

### 2. Right to Freedom (Articles 19–22)

Citizens have the freedom of: (a) **speech and expression**; (b) **assembly** in a peaceful manner; (c) **forming associations** and unions; (d) **moving freely** throughout the country; (e) **residing** in any part of the country; (f) practising any

**profession** or carrying on any occupation, trade or business.
These are subject to reasonable restrictions (public order, peace, morality). Also: **no person can be deprived of life or personal liberty** except according to procedure established by law. A person arrested must be informed of the reasons, must be **produced before the nearest magistrate within 24 hours**, and has the right to consult a lawyer.

### 3. Right against Exploitation (Articles 23–24)

- Prohibits **traffic in human beings** (selling and buying of people, mostly women, for immoral purposes).
- Prohibits **forced labour or begar** (forcing a worker to work for little or no pay); also bonded labour.
- Prohibits **child labour**: no one can employ a child below **14 years** in any factory, mine or hazardous work like railways and ports.

### 4. Right to Freedom of Religion (Articles 25–28)

India is a **secular** state: there is no official religion and the government treats all religions with equal respect. Every person has the right to profess, practise and propagate the religion he or she believes in. But nobody can force another to convert. No special taxes to promote any religion. No religious instruction in government educational institutions.

### 5. Cultural and Educational Rights (Articles 29–30)

- Any section of citizens with a **distinct language or culture** has a right to conserve it.
- Admission to government or government-aided institutions cannot be denied on the grounds of religion or language.
- All **minorities**, religious or linguistic, can set up their own **educational institutions**.

### 6. Right to Constitutional Remedies (Article 32)

This is the right to **seek the enforcement** of the other Fundamental Rights. If any right is violated, a citizen can directly approach the **Supreme Court** or a **High Court**. **Dr. B.R. Ambedkar** called it the "**heart and soul**" of our Constitution.

Courts can issue directions, orders or **writs**. They can also award compensation to victims. Through **Public Interest Litigation (PIL)**, any person or group can approach the courts against violation of rights of others, even through a simple letter or postcard.

**Other bodies:** the **National Human Rights Commission (NHRC)**, set up by law in **1993**, is an independent body that investigates violations of human rights (it cannot punish, but presents findings and recommends action). Its members include retired judges and officers.

**THERE ARE SIX, NOT SEVEN, FUNDAMENTAL RIGHTS**

The **Right to Property** was originally a Fundamental Right but was removed in 1978 (44th Amendment). It is now only a **legal/constitutional right** (Article 300A).

## Expanding scope of rights

- Courts have expanded the meaning of rights: the **right to life** now includes the right to **food**, **health**, a decent environment and dignity.
- The **Right to Education** became a Fundamental Right: free and compulsory education for children aged **6 to 14 years**.
- **Right to Information (RTI) Act, 2005**: citizens can seek information from government offices; this is part of freedom of thought and expression.
- Constitutional rights outside Part III: **right to property** (not a fundamental right but a legal one) and the **right to vote** in elections (a constitutional right).
- The **South African Constitution** gives rights such as the right to **privacy**, adequate **housing**, health care, sufficient food and water. Many people now demand that such claims also become rights.
- **Human rights**: universal moral claims that may not yet be recognised by law. The **International Covenant on Economic, Social and Cultural Rights** recognises the right to work, safe and healthy working conditions, adequate standard of living, social security, health and education.

**BOARD FAVOURITE**

"Why is the Right to Constitutional Remedies called the heart and soul of the Constitution?" and "Explain any two Fundamental Rights" are asked very often. Always name the right and give its main provisions.

## Quick recap

- Life without rights: Guantanamo Bay, Saudi Arabia, Kosovo.
- Rights are reasonable claims recognised by society and sanctioned by law.
- Six Fundamental Rights: Equality, Freedom, against Exploitation, Freedom of Religion, Cultural and Educational, Constitutional Remedies.
- Article 32 (Constitutional Remedies) = "heart and soul" (Ambedkar); PIL widens access.
- NHRC (1993); scope of rights is expanding: education, information (RTI 2005), food.

## Practice questions

1. Which Fundamental Right did Dr. B.R. Ambedkar call the "heart and soul" of the Constitution?
   (a) Right to Equality (b) Right to Freedom (c) Right to Constitutional Remedies (d) Right against Exploitation
2. Guantanamo Bay prison is located near
   (a) Cuba (b) Kosovo (c) Saudi Arabia (d) Afghanistan
3. Within how many hours must an arrested person be produced before the nearest magistrate?
   (a) 12 hours (b) 48 hours (c) 24 hours (d) 72 hours
4. The prohibition of child labour and forced labour comes under the
   (a) Right to Equality (b) Right to Freedom of Religion (c) Cultural and Educational Rights (d) Right against Exploitation
5. The National Human Rights Commission was set up in
   (a) 1950 (b) 1978 (c) 1993 (d) 2005
6. Which of these is NOT a Fundamental Right in India today?
   (a) Right to Freedom of Religion (b) Right to Property (c) Right to Equality (d) Right to Constitutional Remedies
7. Who was the Serb leader whose government targeted ethnic Albanians in Kosovo?
   (a) Nelson Mandela (b) Robert Mugabe (c) Pervez Musharraf (d) Slobodan Milosevic
8. Why do we need rights in a democracy?
9. Explain the Right to Freedom given in the Indian Constitution.

Answers: 1. c 2. a 3. c 4. d 5. c 6. b 7. d 8. see notes 9. see notes